

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel DiRocco	Team: Team # 3	CCRB Case #: 201201095	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/25/2012 3:06 PM	Location of Incident: East 14th Street and 1st Avenue L train subway station	18 Mo. SOL 7/25/2013	Precinct: 09		
Date/Time CV Reported Wed, 01/25/2012 3:30 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/25/2012 3:30 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Silverio	23765	943816	009 PCT
2. POM Sergio Delamota	18344	943137	009 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Silverio	Abuse: Officer Daniel Silverio stopped § 87(2)(b)	A . Substantiated
B . POM Sergio Delamota	Abuse: Officer Sergio Delamota stopped § 87(2)(b)	B . Substantiated
C . POM Daniel Silverio	Abuse: Officer Daniel Silverio searched § 87(2)(b)	C . Unsubstantiated
D . POM Daniel Silverio	Abuse: Officer Daniel Silverio frisked § 87(2)(b)	D . Substantiated
E . POM Sergio Delamota	Abuse: Officer Sergio Delamota frisked § 87(2)(b)	E . Substantiated
F . POM Sergio Delamota	Abuse: Officer Sergio Delamota searched § 87(2)(b)	F . Substantiated

Case Summary

On January 25, 2012, § 87(2)(b) filed this complaint with the CCRB via telephone.

On the same date, at approximately 3:06 p.m., Officer Daniel Silverio and Officer Sergio Delamota, both of the 9th Precinct, stopped § 87(2)(b) inside of the East 14th Street and 1st Avenue subway station in Manhattan. The following allegations resulted:

- **Allegation A—Abuse of Authority: Officer Daniel Silverio stopped** § 87(2)(b)
- **Allegation B—Abuse of Authority: Officer Sergio Delamota stopped** § 87(2)(b)
- **Allegation D—Abuse of Authority: Officer Daniel Silverio frisked** § 87(2)(b)
- **Allegation E—Abuse of Authority: Officer Sergio Delamota frisked** § 87(2)(b)
- **Allegation F—Abuse of Authority: Officer Sergio Delamota searched** § 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that Allegations A, B, D, E, and F be closed as **substantiated**.

- **Allegation C—Abuse of Authority: Officer Daniel Silverio searched** § 87(2)(b)

§ 87(2)(g)

. Therefore, it is recommended that Allegation C be closed as **unsubstantiated**.

On March 14, 2012, following his interview at the CCRB, § 87(2)(b) rejected mediation.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a Hispanic man who was § 87(2)(b) at the time of the incident. § 87(2)(b) has black hair and brown eyes.

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on March 14, 2012 [enclosed 3A-3I]. His statement is summarized below.

On January 25, 2012, at approximately 3:06 p.m., § 87(2)(b) was waiting for his children in front of their elementary school, located on § 87(2)(b) and § 87(2)(b) in Manhattan. § 87(2)(b) was alone. He stood in front of the school and waited for about 20 minutes. During that time, he saw two officers, identified as Officer Sergio Delamota (described by § 87(2)(b) as a black male, 5'9" tall, slim build, light beard, plainclothes, shield number 18344) and Officer Daniel Silverio (described by § 87(2)(b) as a black male, 5'8" tall, slightly muscular, chin strap facial hair, plainclothes, shield number 23765), both of the 9th Precinct, walking across the street. § 87(2)(b) did not interact with the officers and they soon left.

When his children were dismissed from school a few minutes later, § 87(2)(b) escorted them to his mother's car, which was parked down the street. He left the children with his mother and departed on foot.

On the date of the incident, § 87(2)(b) was wearing a black jacket and blue jeans. He had his cell phone, and nothing else, in one of his fleece pockets. Between the two side pockets

on his jeans, § 87(2)(b) had his New York State Identification, 20 dollars in bills, and receipts. None of the above items created a bulge. In addition, § 87(2)(b) had a black bag strapped around his shoulder.

After leaving his children's school, § 87(2)(b) walked to a deli on East 14th Street and 1st Avenue. § 87(2)(b) entered the deli, purchased a snack, and began to eat it on the way out. He then entered the East 14th Street and 1st Avenue subway station and walked to the platform, where he waited for the L train.

Moments later, Officer Delamota and Officer Silverio walked down the steps to the platform and approached § 87(2)(b). From about five feet away, Officer Delamota pulled out his badge and said to § 87(2)(b) "Come here." In response, § 87(2)(b) questioned why he was being stopped. Officer Delamota told him that there had been robberies in the train station, but did not provide further details.

At that point, Officer Delamota said to § 87(2)(b) "Let me see your ID," and instructed him to place his snack and his bag on the ground. § 87(2)(b) complied with all directives. Officer Delamota asked § 87(2)(b) where he lived and § 87(2)(b) verbally stated his address. As this was occurring, Officer Silverio unzipped § 87(2)(b)'s shoulder bag and looked inside.

Officer Delamota subsequently patted down § 87(2)(b)'s entire body. When he reached the side pockets on § 87(2)(b)'s jeans, Officer Delamota entered one of them, removed multiple receipts, and promptly returned them to the same pocket. § 87(2)(b) asked the officers for their shield numbers, which they provided. The officers then left.

NYPD Statements

Subject Officer: OFFICER DANIEL SILVERIO

- *Officer Silverio is a § 87(2)(b)-old Hispanic man. § 87(2)(b) Officer Silverio has black hair and brown eyes.*
- *On January 25, 2012, Officer Silverio, of the 9th Precinct, was assigned to Anti-Crime. He was dressed in plainclothes and partnered with Officer Sergio Delamota, also of the 9th Precinct, in an unmarked patrol car. Officer Silverio worked from 9:30 a.m. to 6:05 p.m.*

Memo Book Entries

On his flysheet, Officer Silverio noted a stop at 3:10 p.m. in the East 14th Street and 1st Avenue subway station. Officer Delamota prepared the stop, question, and frisk report. The stop was related to a burglary condition. The stopped individual was uncooperative, combative, and disorderly. He had a suspicious bulge and made furtive movements [enclosed 8A-8D].

CCRB Statement

Officer Silverio was interviewed at the CCRB on April 4, 2012 [enclosed 10A-10C]. His statement is summarized below.

On January 25, 2012, Officer Silverio and Officer Delamota were patrolling a burglary condition within the confines of the 9th Precinct that stretched from East 14th Street and 1st Avenue to Avenue A in Manhattan. The burglaries began in November 2011 and occurred at all times of the day. Three suspects had captured the NYPD's attention in regards to the burglaries. Officer Silverio did not know any of the suspects' names. However, one of them was a Hispanic male, 5'8" tall to 5'11" tall, medium build, who looked similar to § 87(2)(b).

At approximately 3:10 p.m. on the date of the incident, Officer Silverio, from about two car lengths away, noticed § 87(2)(b) "aimlessly" standing in front of a building on the corner of East 14th Street and 1st Avenue. § 87(2)(b) was repeatedly looking back and forth. Officer Silverio initially stated that § 87(2)(b) did not live in the building. However, upon further

questioning, Officer Silverio admitted that he did not know where § 87(2)(b) lived at the time of the observation.

According to Officer Silverio, § 87(2)(b) was wearing loose-fitting clothing and had a large bulge on his waistband. The bulge was too large to be a cell phone, but Officer Silverio could not describe it further. Officer Silverio did not recall if § 87(2)(b) was in possession of a shoulder bag.

Following the roughly two minute observation, § 87(2)(b) entered the East 14th Street and 1st Avenue subway station. Officer Silverio and Officer Delamota, under the belief that § 87(2)(b) was a burglar, followed him into the subway station. Officer Silverio and Officer Delamota predicated their suspicion of burglary on the following: § 87(2)(b) was aimlessly standing in front of a building in which he did not live, repeatedly looking back and forth; § 87(2)(b) had a large bulge on his waistband; and the officers were in a burglary-prone area.

When Officer Silverio and Officer Delamota entered the subway station, they saw § 87(2)(b) standing on the platform. Both officers approached him and immediately frisked him. Officer Silverio frisked the right side of § 87(2)(b)'s body (near the bulge) and Officer Delamota frisked his left side.

During the frisk, Officer Silverio asked § 87(2)(b) if he had any weapons on his person. § 87(2)(b) stated that he did not, but became “combative,” cursing at the officers and questioning why he had been stopped.

When, in the midst of the frisk, Officer Silverio reached the bulge, he felt “a hard metal object.” Officer Silverio did not recall the shape of the bulge upon touch. However, he stated that it could have been anything, including a gravity knife, a gun, brass knuckles, or a homemade weapon.

Officer Silverio subsequently squeezed the bulge to ensure that it was not a weapon. § 87(2)(b) of his own volition, emptied his pockets. He pulled out papers, a cell phone, a cell phone charger, and a pack of gum.

Aside from the burglary condition, the bulge, and his experience dealing with individuals who conceal illegal items within baggy clothing, nothing else prompted Officer Silverio to believe that § 87(2)(b) was armed. Officer Silverio did not enter § 87(2)(b)'s pockets and he did not see Officer Silverio do so. Additionally, he reiterated that he did not recall if § 87(2)(b) was in possession of a bag.

Following the frisk, § 87(2)(b) produced identification to Officer Delamota and Officer Delamota prepared a stop, question, and frisk report for the encounter. At the conclusion of his interview, the stop, question, and frisk report was presented to Officer Silverio. However, he was unable to account for any of the factors leading to the stop, frisk, and search that were listed on the report.

Subject Officer: OFFICER SERGIO DELAMOTA

- *Officer Delamota is a § 87(2)(b) Hispanic man. § 87(2)(b). Officer Delamota has black hair and black eyes.*
- *On January 25, 2012, Officer Delamota worked the same tour and assignment as Officer Silverio.*

Stop, Question, and Frisk Report

Officer Delamota prepared the stop, question, and frisk report corresponding to the incident [enclosed 4A-4D].

§ 87(2)(b) was stopped under suspicion of burglary. He was observed for 10 minutes prior to the stop. The following circumstances led to the stop: Actions indicative of casing

location, actions indicative of acting as a lookout, furtive movements, area has high incidence of reported offense, and changing direction at the sight of an officer.

§ 87(2)(b) was frisked. The following factors led to the frisk: Inappropriate attire – possibly concealing a weapon and furtive movements.

§ 87(2)(b) was also searched. The following factor led to the search: Hard object.

Memo Book Entries

At 3:50 p.m., Officer Delamota prepared a stop, question, and frisk report for § 87(2)(b) [enclosed 5A-5C].

CCRB Statement

Officer Delamota was interviewed at the CCRB on April 3, 2012 [enclosed 7A-7B]. His statement is summarized below.

Officer Delamota did not recall the incident.

Officer Delamota was presented with a color photograph of § 87(2)(b) taken at the CCRB, but did not recognize him. In addition, he was presented with the stop, question, and frisk report that he prepared and was briefed on the alleged nature of the incident. None of these steps assisted Officer Delamota's recollection.

NYPD Document

Patrol Borough Manhattan South Burglary Pattern Sheet

The Patrol Borough Manhattan South Burglary Pattern Sheet [enclosed 11A-11G] reveals 12 reports of both residential and commercial burglaries between December 25, 2011 and January 17, 2012. The burglaries all occurred within the perimeter of East 10th Street to East 13th Street between 3rd Avenue and Avenue C. Apple laptops, jewelry, and cash were the predominant items that were stolen. No physical description of the perpetrators was available. However, three individuals – § 87(2)(b), all born between § 87(2)(b) – were arrested on February 13, 2012 for having committed two commercial burglaries near 500 East 11th Street. A physical description of these individuals was not available on the burglary pattern sheet. In addition, no reference to perpetrators committing burglaries in subway stations or fleeing via subway is mentioned.

Status of Civil Proceedings

- As of October 5, 2012, approximately five months following the expiration of the 90-day filing deadline, § 87(2)(b) had not filed a Notice of Claim with the City of New York with regard to the incident [enclosed 13A-13B].

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- § 87(2)(b) has filed the following CCRB complaints [enclosed 1C]:

- § 87(2)(b)
-

Subject Officers CCRB Histories

- Officer Sergio Delamota and Officer Daniel Silverio have both been members of the service for six years. There are no substantiated CCRB allegations against either of them [enclosed 1A-1B].

Conclusion

Identification of Subject Officers

It is undisputed that Officer Silverio and Officer Delamota interacted with § 87(2)(b). In statements to the CCRB, § 87(2)(b) provided physical descriptions of the two subject officers which were generally consistent with the pedigree information on file for Officer Silverio and Officer Delamota. In addition, he effectively distinguished Officer Silverio and Officer Delamota by shield number. § 87(2)(g).

Investigative Findings and Recommendations

Allegation A—Abuse of Authority: Officer Daniel Silverio stopped § 87(2)(b)

Allegation B—Abuse of Authority: Officer Sergio Delamota stopped § 87(2)(b)

It is undisputed that Officer Silverio and Officer Delamota stopped § 87(2)(b) under suspicion of burglary.

In his CCRB statement, Officer Silverio described the following observations, which led to the stop:

- 1) § 87(2)(b) was aimlessly standing in front of a building, repeatedly looking back and forth;
- 2) § 87(2)(b) had a large bulge on his waistband;
- 3) § 87(2)(b) appeared to resemble a burglary suspect from the area; and
- 4) § 87(2)(b) was located in a high-crime area, specifically a zone prone to burglaries.

In his CCRB interview, Officer Silverio clarified that, at the time of the incident, he did not know if § 87(2)(b) was a resident of the building that he was standing in front of.

Prior to stopping § 87(2)(b) Officer Silverio believed the bulge on § 87(2)(b)'s waistband to be larger than a cell phone. He was unable to further describe its size and he could not determine its shape.

Officer Silverio described the burglary suspect whom § 87(2)(b) resembled as follows: Hispanic male, 5'8" tall to 5'11" tall, medium build. Officer Silverio did not have additional information regarding the suspect.

The Patrol Borough Manhattan South Burglary Pattern Sheet confirms, as Officer Silverio testified, that a burglary condition was in effect near the incident location at the time of the incident. § 87(2)(g)

In his CCRB statement, Officer Delamota stated that he did not recall the incident. However, he prepared the stop, question, and frisk report for § 87(2)(b). The report notes that § 87(2)(b) was stopped on the following bases: actions indicative of casing location, actions indicative of acting as a lookout, furtive movements, area has high incidence of reported offense, and changing direction at the sight of an officer.

In order to stop an individual, an officer must harbor reasonable suspicion that the individual is engaging in, has engaged in, or is about to engage in, a crime. *People v. DeBour*, 40 N.Y.2d (1976) [enclosed AA-AK]. Innocuous behavior alone, or behavior which is equally susceptible

of a guilty or innocent interpretation, does not generate reasonable suspicion. People v. Solano, 46 A.D.3d 1223 (2007 – 3rd Dept.) [enclosed AL-AM]. Additionally, an individual's presence in a high crime area, absent other indicia of criminality, also fails to generate reasonable suspicion. People v. Hampton, 200 A.D.2d 466 (1994 – 1st Dept.) [enclosed BA-BC].

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **substantiated**.

Allegation C—Abuse of Authority: Officer Daniel Silverio searched § 87(2)(b)

§ 87(2)(b) alleged that, after he placed his bag on the ground, Officer Silverio opened it and examined what was inside.

Officer Silverio did not recall if § 87(2)(b) had a bag, let alone if he searched said bag, and Officer Delamota did not recall the incident.

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D—Abuse of Authority: Officer Daniel Silverio frisked § 87(2)(b)

Allegation E—Abuse of Authority: Officer Sergio Delamota frisked § 87(2)(b)

§ 87(2)(b) alleged that only Officer Delamota frisked him. However, Officer Silverio confirmed that both he and Officer Delamota simultaneously frisked § 87(2)(b)

Officer Silverio stated that he believed § 87(2)(b) to be armed based on the following: The burglary condition, the bulge on § 87(2)(b)'s waistband, and § 87(2)(b)'s baggy clothing.

Prior to the frisk, Officer Silverio was unable to determine the shape of the bulge. He stated that, when he actually performed the frisk, the bulge felt as though it could have been anything from a gravity knife to a gun to brass knuckles to a homemade weapon.

In addition, Officer Silverio stated that, in his experience, individuals who wear baggy clothing tend to conceal illegal items within such clothing.

Officer Delamota did not recall the incident. However, he noted on the stop, question, and frisk report that the following two factors led to the frisk: inappropriate attire – possibly concealing a weapon and furtive movements.

In order to frisk an individual, an officer must reasonably suspect that he/she is in danger by virtue of the individual being armed. People v. DeBour. An undefined bulge in a pocket could be caused by any number of innocuous objects and does not justify a frisk. In the Matter of David B. (Anonymous), 172 A.D.2d 828 (1991 – 2nd Dept.) [enclosed CA-CB].

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations D and E** be closed as **substantiated**.

Allegation F—Abuse of Authority: Officer Sergio Delamota searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that in the midst of the frisk, Officer Delamota entered his pocket and removed multiple receipts. While Officer Delamota did not recall the incident, the stop, question, and frisk report that he prepared for § 87(2)(b) indicates that § 87(2)(b) was searched on the basis of a hard object.

Officer Silverio, for his part, stated that § 87(2)(b) emptied all of his pockets of his own volition. He claimed that § 87(2)(b) removed papers, a cell phone, a cell phone charger, a pack of gum, and nothing else. § 87(2)(b) testified that he had his cell phone, stray receipts, his identification, and 20 dollars in bills in his pockets at the time of the incident.

Generally, in order to search an individual, an officer must have probable cause to effect an arrest. People v. DeBour. The limited exception to this rule is if, in the course of a frisk, an officer feels an object which can reasonably be mistaken for a weapon. People v. Hill, 262 A.D.2d 870 (1999 – 3rd Dept.) [enclosed EA-EB]; People v. Williams, 217 A.D.2d 1007 (1995 – 4th Dept.) [enclosed DA].

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be closed as **substantiated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date